

Amendment No. 2 to HB1351

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1240*

House Bill No. 1351

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-2-1401, is amended by deleting subdivisions (1) and (7) and substituting:

(1) "Alcohol and drug prevention or treatment facility" or "ADTF":

(A) Means an institution, treatment resource, rehabilitation center, hospital, community mental health center, nonresidential office-based opiate treatment facility, nonresidential substitution-based treatment center for opiate addiction, DUI school, counseling center, or clinic providing alcohol and drug services; and

(B) Does not mean a DUI school operated by a state institution of higher education or any facility otherwise licensed or certified by the department, including certified recovery court programs, the department of health, a facility approved by the department of education, or treatment programs operated by the department of correction;

(7) "Recovery residence" means a residence classified as a single family residence, as defined in § 13-24-102, or any other premise, place, or building that provides a substance-free living environment centered on supervised, monitored, or peer-led support that assists individuals in recovery from substance use disorder with services that promote long-term recovery, including direct connection to other peers in recovery, mutual support groups, and recovery support services but does not provide

any medical or clinical services, treatment, or medication administration on-site except for verification of abstinence; and

SECTION 2. Tennessee Code Annotated, Section 33-2-1402(a), is amended by deleting the subsection and substituting:

(a)

(1) The commissioner shall select and approve organizations meeting the minimum standards as described in § 33-2-1404.

(2) The department shall establish and maintain on its website a list of organizations selected and approved by the commissioner.

(3) The department is authorized to promulgate rules to effectuate this subsection (a). The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Title 33, Chapter 2, Part 14, is amended by adding the following as a new section:

33-2-1404. Minimum standards for certification.

(a) An organization selected and approved by the commissioner and performing certification of recovery residences in this state shall adopt the following minimum standards as part of the certification:

(1) Consistent and fair practices for drug and alcohol testing, including frequency of such testing, that promote recovery;

(2) Policies and procedures for the recovery residence to maintain an environment that promotes the safety of the surrounding neighborhood and the community at large;

(3) Policies and procedures for an exit plan for each resident living in the recovery residence that:

(A) Respects the resident's choice;

(B) Addresses occasions where the resident must leave due to an emergency situation or relapse;

(C) Offers relocation services to the resident; and

(D) If possible, does not negatively impact the surrounding community;

(4) A good neighbor policy to address neighborhood concerns and complaints;

(5) A requirement that the operator of each recovery residence have available for emergency personnel an updated list of current medications and medical conditions of each resident living in the home;

(6) A policy that ensures residents are informed of all recovery residence rules, residency requirements, and resident agreements;

(7) Policies and procedures for the management of all monies received and spent by the recovery residence in accordance with standard accounting practices, including monies received from the residents of the recovery residence;

(8) Policies requiring abstinence from alcohol, illicit drugs, and certain nonillicit drugs, including Kratom;

(9) Policies regarding the maintenance of recovery residences, including the installation of functioning smoke detectors, carbon monoxide detectors, fire extinguishers, and compliance with local fire codes applicable to comparable dwellings occupied by single families;

(10) Policies and procedures that:

(A) Prohibit a recovery residence owner, employee, or administrator from requiring a resident to sign any document for the purpose of relinquishing the resident's public assistance benefits,

including medical assistance benefits, cash assistance, and supplemental nutrition assistance program benefits, compiled in title 71; and

(B) Define ethical financial policies for the management of resident funds and rent payments;

(11) Requirements for the notification of a family member or other emergency contact designated by a resident under certain circumstances, including death due to an overdose;

(12) Policies and procedures that prohibit overnight visitors who are not bona fide residents of the recovery residence except for the residents' children who may be allowed overnight visits on a temporary basis when the resident is the custodial parent or in compliance with a reunification plan;

(13) Policies and procedures providing for the safety of residents and prohibiting violence, weapons, and other disruptive behavior, including appropriate responses for such violations;

(14) Requirements for sharing physical locations and addresses of recovery residences with local governments, police departments, fire departments, emergency services officials, and health officials. Such requirements should be utilized when the physical location and address of the recovery residence is not identifiable to the public at large as a recovery residence irrespective of whether the physical address is a public record; and

(15) Policies and procedures that mandate and define:

(A) An ethical code of conduct for owners, employees, and volunteers of a recovery residence;

(B) Prohibited conflicts of interest; and

(C) A residents' rights and a grievance procedure.

(b) Except as provided in subsection (c), a recovery residence seeking certification from an organization is subject to the minimum standards established in subsection (a).

(c) A recovery residence that is certified by an organization prior to January 1, 2026, is not required to comply with the minimum standards established in this section but instead remains subject to the certification standards in effect prior to January 1, 2026, until the earlier of:

(1) The date of its certification renewal, if such renewal occurs on or after July 1, 2026; or

(2) January 1, 2027.

(d) Certification may be valid for no more than three (3) years.

(e) Notwithstanding subsection (d), each recovery residence must undergo a physical site inspection by the certifying organization at least annually for the recovery residence's certification to remain in good standing.

(f) This section does not apply to any residence or facility licensed by the department.

(g) The physical address and location of a recovery residence is not subject to disclosure under title 10, chapter 7, part 5.

SECTION 4. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 5. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 6. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.